

AI brochure for operations

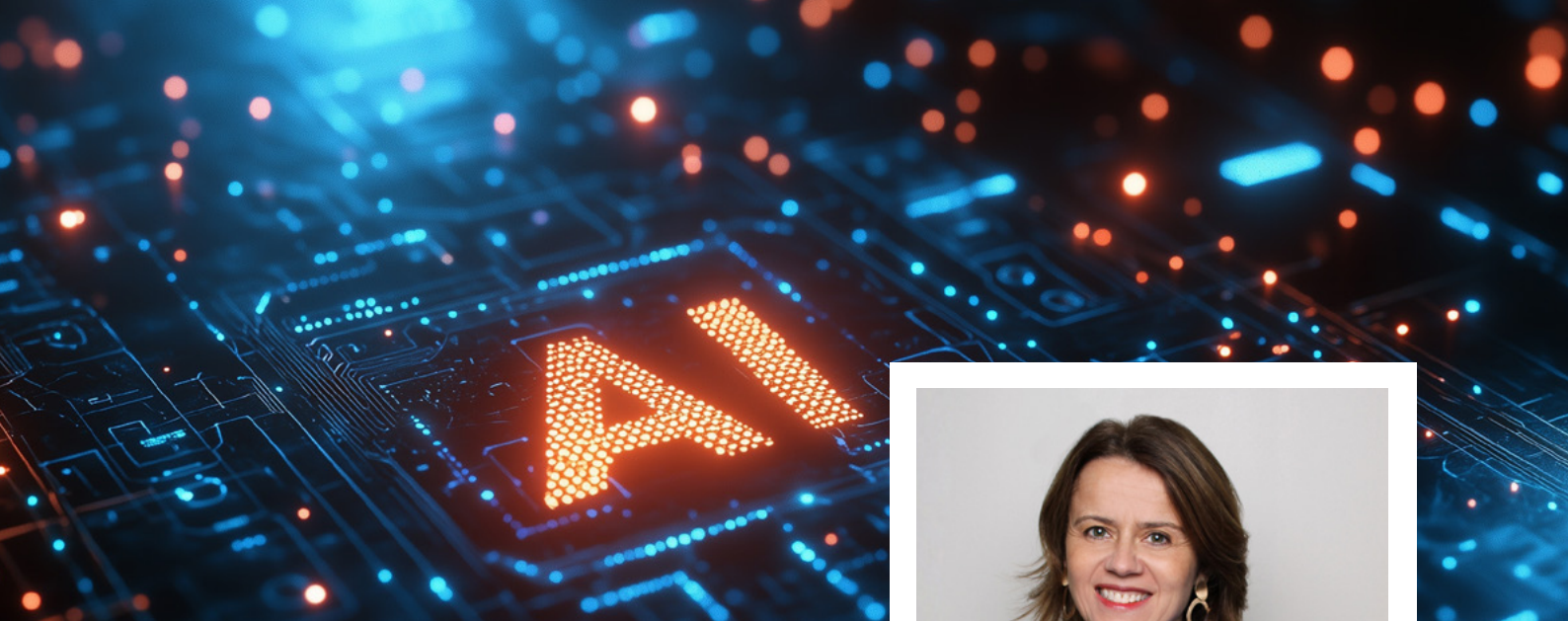
To empower all Capgemini employees to unleash the safe development and use of AI across Capgemini.



Capgemini **Legal**
Enabling Sustainable Growth



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1. Introduction

Artificial Intelligence (AI) - the ability of machines to perform tasks that typically require human intelligence like understanding language, recognizing images, or making decisions - is no longer a futuristic concept; it is a transformative force reshaping industries and redefining business strategies. AI is poised to revolutionize enterprise by enhancing efficiency, decision-making, and customer engagement.

Understanding and leveraging AI is essential to navigate the complexities of modern business environments and to provide strategic value to our clients. We must be fully familiarized with AI technology and its challenges, including regulatory compliance and ethical concerns, to ensure that AI is developed and used responsibly and effectively within the organization and for our clients.

It is not just a collective responsibility but also an individual duty to keep up to date with this revolutionary technology, its challenges and opportunities. This document describes the key concepts, processes and resources to equip you with the knowledge and tools needed to navigate the AI landscape effectively.

As we move forward, it is imperative to embrace AI with a strategic mindset. This involves not only understanding the technology but also recognizing its implications for our work, internally and for clients. By doing so, we can leverage AI to drive innovation, enhance efficiency, and deliver exceptional value to our clients.



Maria Pernas

Group Executive Committee Member | Group General Counsel and GEC Member in charge of Commercial & Contract Management

2. AI – Different forms and challenges

AI comes in many forms. Although Generative AI (GenAI) has been given much attention, it's important to remember that this is not the only form of AI and that we often need to consider AI in its wider sense when assessing, for example, the legal implications.

When talking about AI and the related challenges, it is helpful to distinguish between some widely used terms:

- **GenAI:** Artificial intelligence systems designed to create new content—such as text, images, or code—based on patterns learned from large datasets. Their primary distinction is their ability to generate original outputs, rather than just analysing or processing existing data.
- **Agentic AI:** AI that can independently pursue goals, make decisions, and take actions in a dynamic environment. Unlike GenAI, which focuses on content creation, Agentic AI is defined by its autonomy and goal-driven behaviour, operating with a degree of self-direction.
- **AI agents:** Software entities that perceive their environment, make decisions, and perform actions to achieve specific objectives. While Agentic AI refers to systems with high autonomy and advanced decision-making, “AI agents” is a broader term that can include both simple rule-based bots and complex, autonomous AIs, covering a wide range of capabilities and levels of independence. AI agents often incorporate GenAI models and capabilities.

Client delivery and internal use

When **providing services to clients**, Capgemini may (i) use AI systems to deliver the services and enhance productivity and/or (ii) develop AI systems for clients and/or modifying existing ones. The key AI-related legal considerations for these situations are summarised below.

Situation (i): Use of AI systems to deliver the services and enhance productivity

- **Output quality and lawfulness:** If the output is not checked for correctness (no ‘hallucinations’), unwanted and harmful biases, and potential third-party IP infringement before use, this could lead to low-quality client deliverables that are not compliant with client and legal requirements.
- **Data privacy and confidentiality:** The provider (owner/licensor) of the AI system (and/or underlying model) can have extensive rights with regards to processing input and output data, e.g. for model training. Also, using data as input may constitute disclosure or processing of that data, so issues of confidentiality and personal data obligations must be considered.

- **Regulatory Compliance:** Obligations on ‘providers’ of AI systems are more onerous than those for mere ‘deployers (users)’. Capgemini should not agree in client contracts to take on the responsibilities of a provider where it is only deploying a third-party AI solution.

Situation (ii): The development of AI systems for clients and/or the modification of existing ones

- **Output quality and lawfulness:** The client as deployer should be made responsible for checking the quality of the output (ensuring it is correct, free from unwanted and harmful biases, and does not infringe on third-party IP rights) to avoid Capgemini being held accountable for the use of the AI system by the client, which is beyond its control.
- **Regulatory Compliance (Capgemini is not the provider):** Capgemini may be misidentified as the provider instead of just supporting the client in developing the AI system, taking on responsibilities and obligations beyond its actual regulatory obligations.
- **Regulatory Compliance (Capgemini is the provider):** Delivery teams must be aware of regulatory requirements to ensure that the AI system is in line with regulations (e.g. the EU AI Act). Client contracts containing a broad ‘compliance with the laws’ clause, can increase the risk of Capgemini assuming exposure to potential claims from the client in relation to these regulatory obligations.

When using AI systems internally (not for client engagements), similar challenges exist. All AI systems must be used in line with intellectual property, data privacy and confidentiality, regulatory and ethical requirements

For more information about the challenges linked to AI, visit [LINK](#).

Regulatory context and developments

The regulatory landscape surrounding AI is undergoing rapid transformation. The most comprehensive regulation currently in force is the European Union Artificial Intelligence Act (EU AI Act). This Act notably prohibits certain activities involving the use of AI, while also creating obligations for parties developing and deploying AI systems which vary depending on how the system will be used and its potential effects (its risk level). There are also specific obligations on providers of the most powerful AI models.

Outside Europe, there is a growing global patchwork of regulations and standards affecting individual countries and regions on particular AI-related issues. In addition, there are numerous ongoing legal challenges in the courts, such as those relating to the use of copyrighted materials to train large language (LLMs) and other models.

If you want to know more, visit the “OneLegal Regulatory Platform”, which includes a section dedicated to the latest advancements in AI. It is updated regularly by the Group Legal AI Office with curated materials from Partner Law Firms.

3. How can we help?

3.1 General Capgemini Group policies and processes

I want to use a certain GenAI system or model to support delivery in a client project, which process should I follow?

Capgemini employees can only use Group approved GenAI technologies. In relation to client projects, the relevant process is the “Procure-Secure-Access” (PSA) process. As part of this process, GenAI technologies are reviewed and approved at Group level. The PSA process is managed by Group Industrialisation and supplements the standard Group procurement process, and other internal Group stakeholders (including Group Procurement, Group Legal, Group Cyber, Group IT and Group Delivery) participate in the assessment and validation of the requested technology. If the request is approved, a contract with the relevant AI tool provider is concluded.

If a new (not yet approved) GenAI tool is intended to be used in connection with a client project, the relevant business/operational team must submit a request for approval using [this form](#) available on [Talent](#).

You can find the description of the process and the list of approved technologies on the [GenAI Talent Page](#).

I’m involved in an opportunity that includes the provision or development of an AI solution for a client, is there any specific or separate approval process for AI projects?

Review and assessment of projects including AI must be channelled and reviewed as part of the usual existing deal process reviews. Accordingly, the specific legal risks and mitigations should be considered as part of the normal legal review process in place within the BUs. The local Legal & CCM teams have access to various guidelines and a dedicated Legal & CCM AI training pathway to ensure that they are aware of and can address the key considerations.

As a Group Function we want to deploy (Gen)AI to support us in our day-to-day work, which process do we need to follow?

For internal use by Group Functions, any use case must be reviewed and approved by the Cross-Functional Board (CFB). The CFB is composed of representatives of Group Functions and is chaired by Maria Pernas (Group General Counsel and GEC member in charge of CCM) and the program is managed by Group Transformation. Each Group Function has also appointed a “Champion”, who is the main contact within the relevant function to trigger the submission of the use case for CFB assessment and approval.

The CFB takes input from various stakeholder functions (e.g. Group IT, Group Legal) and provides a ‘go/no go’ with its conditions.

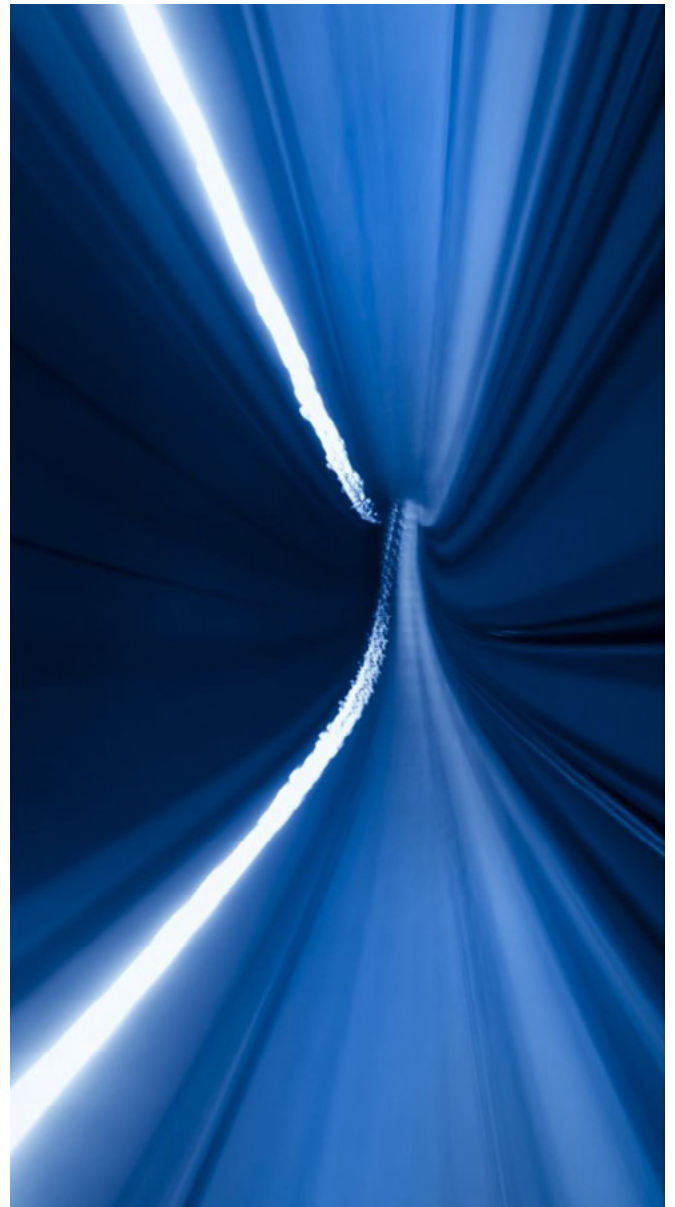
Which Group policies and guidelines are in place that I need to be aware of?

The Group has developed some specific AI policies and guidelines. The main ones are:

- **Generative AI Group Guidelines** aimed at all employees inside Capgemini and its subcontractors and focused primarily on safely utilizing GenAI.
- **Group Cyber guidelines** focusing on cybersecurity related risks and mitigations for the secure use of GenAI within Capgemini: Gen AI Ref Architecture Guidelines
- The **Code of Ethics for AI** has been in place since 2021 and deals with the ethical implications of AI.
- **AI Technology Guidelines.** Each GenAI technology that has been approved via the PSA process comes with specific guidelines that employees who use the technology should follow.

You can find the Technology Guidelines and other Group guidelines and policies on the [GenAI Talent page](#).

Note that there may be additional local policies and guidelines in place for the development and use of (Gen)AI.



3.2 Group Legal AI Office

Organisation

What is the Group Legal AI Office?

The Group Legal AI Office is the team within Group Legal responsible for providing strategic advice, expertise and guidance on AI legal and regulatory matters. In particular, the Group Legal AI Office:

- Formulates a comprehensive group legal strategy and program for all AI matters
- Defines Capgemini's legal approach to adopting relevant policies and procedures
- Develops and coordinates the AI legal Network and organization across the functions and countries
- Monitors full implementation of the AI legal program, driving alignment across the organization
- Standardizes documentation and implements tools for efficient AI legal governance
- Continuously updates governance frameworks in line with new legislation and market practice
- Coordinates a comprehensive platform for Legal & CCM ("AI Hub"), providing them with practical resources to enhance AI risk assessment, deployment, and adoption.
- Heads the "Legal & CCM AI Accelerator", consisting of AI Legal champions in every (S)BU, through monthly calls to ensure alignment of priorities, knowledge sharing, and communication between Group and local operations from a legal perspective.

Are there any specific Legal guidelines for the development and use of AI that I need to be aware of?

- The "Navigating Legal Implications" guide (including the "Legal flags" one page summary), details the legal risks in relation to the use of GenAI.
- As part of the CFB process, the Group Legal AI Office developed general rules for the use of AI internally.
- The AI Technology Guidelines also contain a section about the legal points of attention.

Regulatory compliance

Which actions are taken to ensure Capgemini complies with AI regulatory requirements, notably the EU AI Act?

- A **prohibited practices compliance program** is in place to ensure that Capgemini does not engage in any practices prohibited by the EU AI Act.
- Capgemini is one of the first signatories to the [EU AI Pact](#), an initiative launched by the European Commission to encourage companies to voluntarily start implementing the principles of the Act ahead of its full application. The Group Legal AI office participates in AI Pact

related webinars and forums and coordinates the implementation of the AI Pact principles.

- Supported by the local AI Legal champions and law firms, the Group Legal AI Office closely monitors **AI regulatory developments**. All local Legal teams for more information about regulatory developments, visit the "OneLegal Regulatory Platform".

I want to know more about the EU AI Act, where can I find this information?

The Group Legal AI Office created the EU AI Act training pack, will support you in enhancing your understanding of the Act. It contains presentations and accompanying videos. You can access the training pack [here](#).

Training

Where can I find more information about AI and its legal challenges?

Besides the general training available on Next, notably within the Data & AI Campus, the Generative AI Campus and the Agentic AI sub-plan, the Group Legal AI Office and the local Legal teams provide training to the business on a variety of particular topics, including legal risks associated with (Gen)AI and the impact of AI-related regulations. On request, the Group Legal AI Office can provide custom made trainings to address the specific needs of a team or unit.

Talking to clients

I want to provide the client with general talking points about the potential challenges of AI from a legal perspective and how we can help to address them. Do we have something that I can use?

Yes, Legal & CCM have developed some materials that can be used by our sales teams to help them navigate this topic during their meetings with clients. You can find it [here](#).

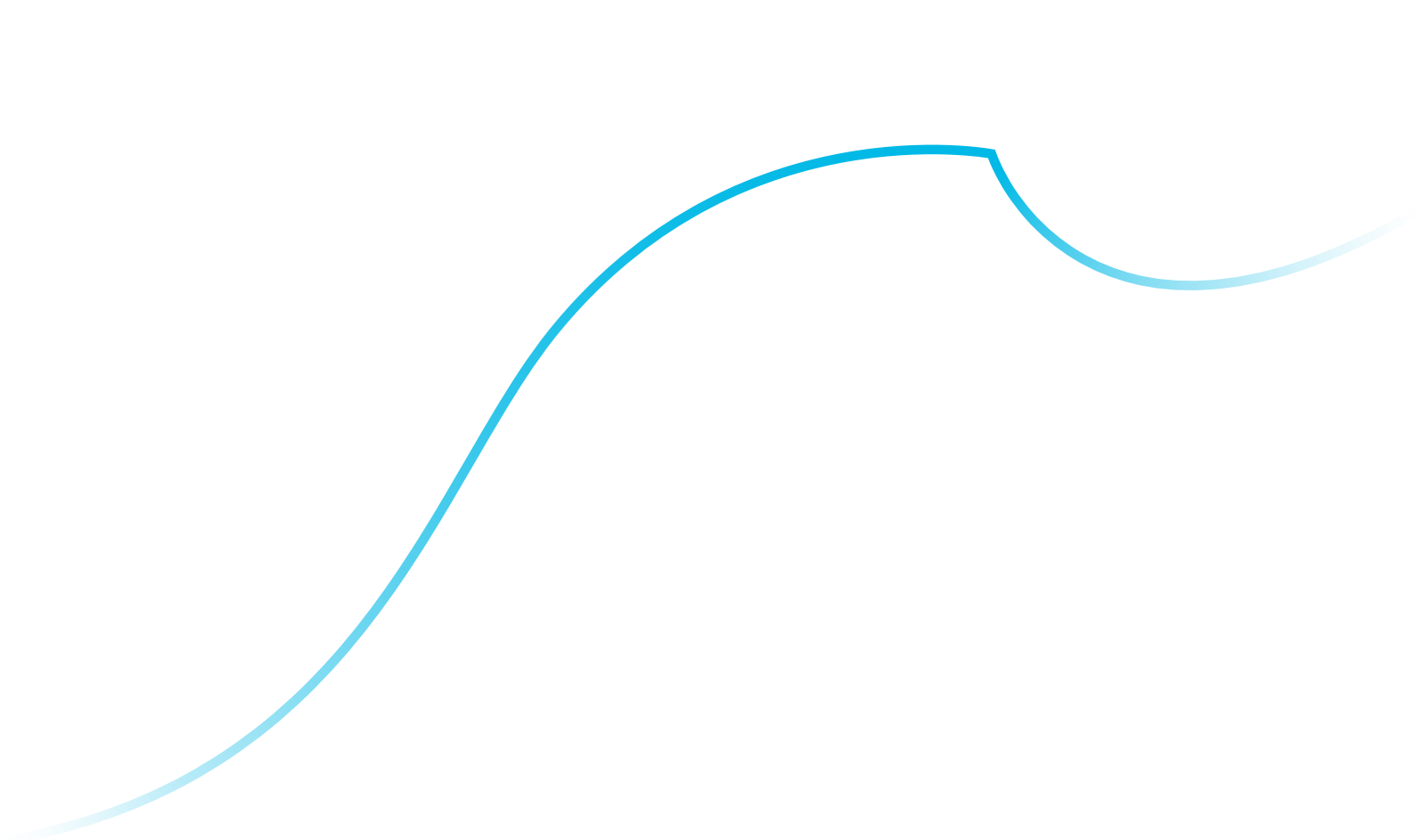
What can I share with clients, suppliers or partners when they are asking about Capgemini's approach to EU AI Act compliance?

The Group Legal AI Office has published standard wording and explanations to outline and reassure clients in relation to our legal & regulatory compliance. By clicking [here](#) you can share this wording with the client.

How can the Group Legal AI Office support me in the delivery of AI-related projects?

The Group Legal AI Office supports client projects by embedding legal and regulatory expertise directly into delivery teams, as demonstrated in several ongoing engagements. Members of the Group Legal AI Office are for example part of 'expert pools' within delivery teams and serve as trusted advisor for both the Capgemini team and the client.

If you have any questions or want to know more about how we can support, you can contact the Group Legal AI Office at: grouplegalaioffice.in@capgemini.com



About Capgemini

Capgemini is a global business and technology transformation partner, helping organizations to accelerate their dual transition to a digital and sustainable world, while creating tangible impact for enterprises and society. It is a responsible and diverse group of 340,000 team members in more than 50 countries. With its strong over 55-year heritage, Capgemini is trusted by its clients to unlock the value of technology to address the entire breadth of their business needs. It delivers end-to-end services and solutions leveraging strengths from strategy and design to engineering, all fueled by its market leading capabilities in AI, generative AI, cloud and data, combined with its deep industry expertise and partner ecosystem. The Group reported 2024 global revenues of €22.1 billion.

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